

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION

CHRISTOPHER HANSON, individually
and as attorney for himself and attorney/
next friend for his minor children,

Plaintiffs,

v.

Case No.: 25-CA-010255
Division: B

THIRTEENTH JUDICIAL CIRCUIT, et al.

Defendants.

HILLSBOROUGH COUNTY COO
FEB 17 2026 AM 9:11

**ORDER DENYING IN PART AND GRANTING IN PART PLAINTIFF'S "MOTION
FOR IMMEDIATE RELIEF AND RECONSIDERATION OF INCOMPLETE ORDER
AND IMMEDIATE ASSIGNMENT OF NEUTRAL SUCCESSOR"**

THIS MATTER came before the Court on Plaintiff's "Motion for Immediate Relief and Reconsideration of Incomplete Order and Immediate Reassignment of Neutral Successor," filed on January 27, 2026. Upon review of the court records and the law, the Court finds the following:

1. On November 13, 2025, Plaintiff filed an "Amended Verified Petition/Complaint for Writ of Mandamus, Declaratory Relief, and Attorney's Fees."
2. On January 13, 2026, the parties came before the Court via Zoom for a case management conference.
3. The Court issued an "Alternative Writ in Mandamus" dated January 13, 2026, finding that it was without jurisdiction pursuant to Florida Rule of General Practice and Judicial Administration 2.420(l) to review denials of access to records alleged to be held by individual judges; the pleading did not show a prima facie case for entitlement to declaratory relief under Chapter 86, Florida Statutes; and that the Amended Verified Petition/Complaint established a

prima facie case for a Writ for Mandamus. Accordingly, the Court's Alternative Writ ordered Defendants to respond to certain limited parts of that petition in accordance with Florida Rule of Civil Procedure 1.140.

4. On January 16, 2026, Plaintiff filed a "Verified Motion to Vacate, for Clarification, Rehearing, and Entry of an Order Consistent with the Relief Requested in the Amended Petition, and Absent Immediate and Satisfactory Relief or Explanation, Disqualification of Judge Frayman from These Proceedings."

5. On January 21, 2026, Judge Frayman entered an order granting Plaintiff's request for disqualification.¹

6. Then, on January 27, 2026, the Plaintiff filed his "Motion for Immediate Relief and Reconsideration of Incomplete Order and Immediate Assignment of a Neutral Successor" requesting this Court provide the following relief: (1) immediately assign this case to a neutral judge outside of the 13th Judicial Circuit; (2) vacate the dismissal of the Writ; (3) issue an Alternative Writ in Mandamus requiring the 13th Judicial Circuit to produce the requested records or show cause within 48 hours; and (4) transfer the underlying family law case to a neutral circuit.

7. On January 29, 2026, the Florida Supreme Court assigned the Honorable Judge Sherwood Coleman, a Sixth Judicial Circuit Court judge, to preside over this case.²

8. On February 6, 2026, the parties appeared before the Court to present arguments on Plaintiff's current motion. Consistent with the ruling announced from the bench at the conclusion of the hearing, the Court has granted partial relief to the Plaintiff.

¹ In compliance with Fla. R. Gen. Prac. & Jud. Admin. 2.330, the Court entered an order solely granting the request for judicial disqualification and did not proceed further in the action. Therefore, the Court did not address other issues raised in the January 16, 2026, motion, including Plaintiff's request for the Court to vacate the January 13, 2026, order, grant a rehearing, and enter an order consistent with the amended petition.

² See Florida Supreme Court Assignment Order 2026-63.

9. As to the first item of relief requested, as mentioned above, this case has been assigned to a Sixth Judicial Circuit Court judge pursuant to Florida Supreme Court Assignment Order 2026-63. Accordingly, the litigants agreed Plaintiff's request for immediate assignment of this case to a neutral judge outside of the 13th Judicial Circuit is appropriately denied as moot.

10. Plaintiff's second and third request for relief, that the Court vacate the dismissal of the Writ and issue an Alternative Writ in Mandamus requiring the 13th Judicial Circuit to produce the requested records or show cause within 48 hours, are intertwined and as such will be addressed collectively. This Court grants the request to the extent that it vacates the January 13, 2026, Alternative Writ. For the time being, the Court denies the request to issue an alternative writ until it can reconsider the prior ruling on the Amended Verified Petition/Complaint for Writ of Mandamus, Declaratory Relief, and Attorney's Fees and conduct its own review for facial sufficiency, as required by Florida Rule of Civil Procedure 1.630(d). If, after its review of the Amended Verified Petition/Complaint, the Court finds the pleading shows a prima facie case for relief, the Court will then issue an alternative writ and require Defendants to respond within the timeframe provided in Florida Rule of Civil Procedure 1.140.³

11. Lastly, as to Plaintiff's request that the Court transfer the underlying family law case to a neutral circuit, Plaintiff did not provide any authority beyond citing generally to the broad plenary powers of a court that would authorize his requested relief. Neither the assignment order in this case, nor the generally referenced axioms empower this Court to affect such a transfer. Accordingly, Plaintiff's request must be denied.

³ This Court acknowledges Plaintiff's post-ruling argument that the decision to vacate the January 13, 2026, order in its entirety, as opposed to in part, may cause delay because Defendants will be provided an opportunity to respond if the Court finds a prima facie showing for a writ of mandamus. However, no additional delay is created because Defendants would have still been allowed the opportunity to respond within twenty days had the order been vacated only in part, pursuant to Fla. R. Civ. P. 1.140.

12. Therefore, for the reasons articulated herein, Plaintiff's "Motion for Immediate Relief and Reconsideration of Incomplete Order and Immediate Reassignment of Neutral Successor" is granted in part and denied in part.

It is therefore,

ORDERED AND ADJUDGED that Plaintiff's "Motion for Immediate Relief and Reconsideration of Incomplete Order and Immediate Reassignment of Neutral Successor" is **GRANTED IN PART AND DENIED IN PART.**

9th **DONE AND ORDERED** in Chambers in Clearwater, Pinellas County, Florida, this day of February 2026. A true and correct copy of the foregoing has been furnished to the parties listed below.


SHERWOOD COLEMAN
CIRCUIT COURT JUDGE

Copies furnished to:

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Plaintiff

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